# MASTER SERVICES AND DATA PROCESSING AGREEMENT

Effective Date: January 15, 2026 | Contract Ref: MSA-2026-014

## Article 1: Definitions and Interpretation

1.1 Confidential Information means all non-public technical, financial, or business data disclosed by either party, except information that is publicly available without breach of this Agreement or independently developed.

1.2 Service Level Objective (SLO) means 99.95% monthly uptime availability, measured excluding Scheduled Maintenance Windows defined in Section 3.2.

1.3 Customer Data means any electronic data, records, or documents uploaded by Customer into the hosted platform.

## Article 2: Fees, Invoicing, and Payment Terms

2.1 Customer shall pay all undisputed fees within thirty (30) calendar days of invoice receipt. Late balances accrue interest at 1.5% per month unless disputed in good faith prior to the due date.

2.2 Overdue accounts exceeding forty-five (45) days may be suspended upon ten (10) business days written notice, provided that Acme shall not suspend access while a bona fide billing dispute is under joint review.

## Article 3: Service Levels and Support Credits

3.1 If monthly uptime falls below 99.95%, Customer is eligible for a 10% credit, and if uptime falls below 99.0%, a 25% credit, subject to Clause 3.2.

3.2 Scheduled Maintenance Windows occur Sundays 02:00-06:00 UTC with 72 hours advance notice. Customer is not entitled to service credits for downtime caused by Scheduled Maintenance or force majeure events.

## Article 4: Data Protection, Security, and Subprocessors

4.1 Provider shall maintain SOC 2 Type II certification and encrypt all Customer Data at rest using AES-256 and in transit using TLS 1.3.

4.2 Security Incident Notification: Provider must notify Customer within twenty-four (24) hours of confirming any unauthorized access to Customer Data, and shall preserve forensic logs for at least ninety (90) days.

4.3 Subprocessors may only be engaged pursuant to Section 4.1 security standards and after fifteen (15) days prior written notice to Customer.

## Article 5: Limitation of Liability and Termination

5.1 Except for breaches of Section 1.1 (Confidentiality) or Section 4.2 (Security Incident Notification), each party’s aggregate liability shall not exceed the total fees paid by Customer in the preceding twelve (12) months.

5.2 Either party may terminate for material breach if uncured thirty (30) days after written notice. Upon termination, Provider shall export Customer Data within thirty (30) days and permanently purge all copies within sixty (60) days.

5.3 Governing Law: This Agreement is governed by the laws of the State of Delaware, without regard to conflict-of-law principles, and subject to mandatory arbitration under Section 99.4 of the External Arbitration Rules.